

26STCV03602 26STCV03602

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Case Number: 26STCV03602 Hearing Date: September 18, 2026 Dept: 406

SHIN P. YANG,

Plaintiff,

v.

KAZN AM 1300, et al.,

Defendants.

Case No.: 26STCV03602

Hearing Date: September 18, 2026

[TENTATIVE] order RE:

plaintiff's motion to conduct discovery into financial condition (CRS# 7045)

BACKGROUND

On February 3, 2026, Plaintiff Shin P. Yang filed this action against Defendants KAZN AM 1300 and Yvonne Liu, asserting (1) equitable enforcement of oral settlement agreement, (2) promissory estoppel, and (3) breach of the implied covenant of good faith and fair dealing.

The dispute originates from an earlier litigation regarding breach of an advertising agreement, Shin Yang, et al. v. KAZN 1300, et al. (19STCV11399). During the trial in that earlier action, the parties allegedly reached an oral settlement before the court. The alleged agreement was for Defendants to pay Plaintiff \$250,000 and provide Plaintiff with one year of free radio advertising in exchange for dismissal of the lawsuit. Plaintiff alleges that Defendants have failed to perform their obligations under the settlement agreement.

On August 20, 2026, Plaintiff filed the instant motion for authorization to conduct discovery into Defendant Liu's financial condition. Defendant filed an opposition on September 9, 2026.

LEGAL STANDARD

"No pretrial discovery by the plaintiff shall be permitted with respect to the [defendant's financial condition] unless the court enters an order permitting such discovery pursuant to this subdivision." (Civ. Code, § 3295(c).) "Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294." (Ibid.)

"In this context, a 'substantial probability' of prevailing on a claim for punitive damages means that it is 'very likely' that the plaintiff will prevail on such a claim or there is 'a strong likelihood' that the plaintiff will prevail on such a claim." (Kerner v. Superior Court (2012) 206 Cal.App.4th 84, 120.) "The purpose of this requirement is to protect defendants' financial privacy and prevent defendants from being pressured into settling nonmeritorious cases in order to avoid disclosure of their financial information." (Ibid.)

DISCUSSION

Plaintiff requests discovery under Civil Code section 3295(c) but does not even attempt the requisite showing. Plaintiff presents no argument or evidence whatsoever demonstrating a "substantial probability" of prevailing on his claim for punitive damages.

Plaintiff only argues that he needs the information to pursue his claim for punitive damages. But section 3295(c) is clear in its mandate, and Plaintiff presents no authority to the contrary. Without the showing required under section 3295(c), Plaintiff cannot obtain pretrial discovery of Defendant's financial information. The discovery will only be pertinent if and when the trier of fact finds malice, oppression, or fraud. (See Civ. Code, § 3295(d); Holdgrafer v. Unocal Corp. (2008) 160 Cal.App.4th 907, 919.) The amount of punitive damages will then be litigated separately. (Ibid.)

CONCLUSION

Plaintiff's motion to conduct financial discovery is DENIED.

MARJAN JAHANSHAH,

Plaintiff,

v.

AFSHIN ASHER, et al.,

Defendants.

Case No.: 26STCV13770

Hearing Date: September 18, 2026

[TENTATIVE]

order RE:

defendants' demurrer to first amended

complaint

BACKGROUND

On April 29, 2026, Plaintiff Marjan

Jahanshahi filed this action against Defendants Afshin Asher and Asher Law

Group, APC. Plaintiff filed the operative First Amended Complaint on May 18,

2026, asserting (1) professional negligence, (2) breach of fiduciary duty, and

(3) fraudulent concealment.

On August 6, 2026, Defendants filed

the instant demurrer to the FAC. Plaintiff filed an opposition on September 4,

2026. Defendants filed a reply on September 11, 2026.

LEGAL STANDARD

A demurrer for sufficiency tests whether

the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When

considering demurrers, courts read the allegations liberally and in

context. (*Taylor v. City of Los*

Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “California law emphasizes ultimate fact pleading (with some exceptions, notably for fraud and related torts) ‘in ordinary and concise language,’ and the test for adequacy is not absolute but ‘whether the pleading as a whole apprises the adversary of the factual basis of the claim.’” (Lim v. The TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690.)

MEET AND CONFER

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.)

The Court finds that Defendants have satisfied the meet and confer requirement.

(See Parcels Decl.)

DISCUSSION

According to the FAC, “[t]his action

arises from Defendants' preparation, handling, transmission, and later characterization of materials affecting Plaintiff's property rights, financial obligations, economic interests, and financial exposure associated with the transaction and Property, without maintaining or producing a coherent, contemporaneous documentary record sufficient to identify what materials, if any, affected Plaintiff's rights or obligations at any relevant time." (FAC ¶ 1.) "Plaintiff cannot determine what document, if any, affects her rights, obligations, authority, economic interests, or financial exposure, while she remains personally obligated on the mortgage and responsible for ongoing liabilities related to the Property." (Id., ¶ 2.)

However, the FAC is uncertain. The allegations vaguely describe the handling of unspecified documents, and it is unclear what the transaction pertained to or what Defendants' involvement was.

The FAC does not describe the relationship between Plaintiff and Defendants.

Plaintiff does not allege that she retained Defendants for legal services.

Thus, the FAC fails to allege any relationship giving rise to a professional duty of care, fiduciary duties, or a duty to disclose. (See *Fox v. Pollack* (1986)

181 Cal.App.3d 954, 959 ["an attorney's duty to his or her client depends on the existence of an attorney-client relationship. If that relationship does not exist, the fiduciary duty to a client does not arise"].) Plaintiff's

opposition provides no further clarity and relies on material in Plaintiff's declaration, which is external evidence that the Court cannot consider on a demurrer.

CONCLUSION

Defendants' demurrer is SUSTAINED

with leave to amend.